

Court No. - 40

Case :- WRIT - C No. - 36235 of 2022

Petitioner :- Balistar @ Shyam Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Mohan, Juhi Srivastava

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and learned Standing Counsel and Sri Alok Mishra, learned counsel for respondent nos.2 and 3.

By means of the present writ petition, the petitioner is challenging recovery citation dated 20.8.2022 issued by respondent no. 3.

Sri Alok Mishra, learned counsel for respondent nos.2 and 3. raised a preliminary objection regarding maintainability of the present writ petition on the ground that the Uttar Pradesh Electricity Supply Code, 2005 is a Code in itself. He submits that since the present matter relates to theft and unauthorized use of electricity, the petitioner has an efficacious remedy to file an appeal under Provision 6.8 of the Uttar Pradesh Electricity Supply Code, 2005.

Considering the objections, so raised by learned counsel for the Corporation, we are not inclined to entertain the writ petition. The petitioner has an efficacious remedy to take recourse under Provision 6.8 of the Uttar Pradesh Electricity Code, 2005. It is always open for the petitioner to avail the remedy available to him under the Code, 2005. The Court hopes and trusts that the competent authority shall proceed with the matter strictly in accordance with law.

With the aforesaid observations and leave, the present writ petition stands disposed of.

Order Date :- 2.1.2023

Dev/-